

Orissa State Agricultural Marketing Board Regulations, 1991

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State of Odisha - Act

Orissa State Agricultural Marketing Board Regulations, 1991

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Orissa State Agricultural Marketing Board Regulations, 1991

RULE ORISSA-STATE-AGRICULTURAL-MARKETING-BOARD-REGULATIONS-1991 of 1991

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Orissa State Agricultural Marketing Board Regulations, 1991

For the Bill see Orissa Gazette, Extraordinary No. 1941 dated the 12th September 1979.

In exercise of the powers conferred under Sub-section (1) of Section 18-C of the Orissa Agricultural Produce Markets (Amendment) Act, 1984 (Orissa Act 27 of 1984) the Orissa State Agricultural Marketing Board (OSAMB), Bhubaneswar makes the following Regulations :

Chapter-I Preliminary

1.

Short title.

(1)

These Regulations may be called the Orissa State Agricultural Marketing Board Regulations, 1991.

(2)

These regulations shall be deemed to have come into force on and with effect from the date of approval by the State Government (provided that the services prior to that date shall be deemed to have been regulated under the corresponding provision of Government Rules except where the Board decides otherwise).

2.

Definitions.

(1)

In these regulations unless there is anything repugnant in subject or context.

(a)

"Act" means, the Orissa Agricultural Produce Markets Act, 1956 as amended in 1984;

(b)

"Rules" means the Orissa Agricultural Produce Markets Rules, 1958;

(c)

"Board" means, Orissa State Agricultural Marketing Board, constituted under the Act;

(d)

"Director" means the Director of Marketing;

(e)

"Secretary" means, the Member Secretary of the Board, constituted under the Act;

(f)

"Appointing Authority" means the authority to whom the power of appointment has been delegated or may be delegated by the Board.

(g)

"Employee" means any employee of the Board who has been regularly appointed or remunerated on monthly rate basis;

(h)

"Pay" means the amount drawn by an employee of the Board and includes his;

(i)

basic pay which has been sanctioned to him for the post held by him substantively or in a temporary or officiating capacity;

(ii)

special pay, deputation pay and personal pay;

(iii)

any other emoluments or allowances;

(i)

"Service" means the service under the Board "Substantive Appointment" means the appointment not being an ad hoc appointment, on a post in the case of the service made after selection in accordance with these Regulations;

(k)

"Year" means the period of 12 months commencing from 1st day of November of a Calendar Year;

(l)

"Leave" means any variety of leave recognised by these Regulations.

(m)

Employees on deputation shall be governed by the terms and conditions of their deputation.

Amendments : Any amendment by way of addition, alternation or deletion in the Regulations shall be made only under the authority of a resolution of the Board and shall be notified to the employees either by publication on the notice board of the Board or by circulation.

Delegation of Powers : (a) Subject to the provisions of the Acts Rules and Regulations made thereunder the Board may delegate either unconditionally or subject to such conditions as may be specified in the order to the Chairman or Secretary or any other officer of the Board such of its power and duties under the Act, as it may deem fit.

(b)

The Chairman or the Secretary of the Board may subject to such restriction and for so long as he may deem fit, delegate to any of the officers of the Board such of his powers as are conferred on him.

Chapter-II

3.

(I) Meeting of the Board and conduct of business at such Meeting.

- (i) Subject to the provisions of the Act and Regulations made thereunder the Board shall meet for the transaction of its business at least once in every three months at such place and at such time as the Chairman may determine :

Provided that in case of emergency the Chairman may call for the meeting of its members at any time and at any place within the State at short notice:

Provided further that in absence of the Chairman, the Secretary of the Board on the requisitions from the Government or from at least two-third of members of the Board may call for the meeting of members.

(ii)

Notice for the Meeting - Not less than 7 (seven) clear days notice in case of ordinary meeting and not less than three clear notice in case of emergent meeting shall be given to every member of the Board. Such notice shall specify the place, date and time of the meeting and the business to be transacted therein and in case of a meeting conveyed upon requisition the notice shall contain the reasons for calling such meeting. All such notices shall be issued to the Members, residing outside the Headquarters area, under-certificate of posting,

(iii)

Quorum of Meeting - (a) The quorum for the Board Meeting shall be five or 1/3rd of the total number of members whichever is less.

(b)

if within half an hour from the time appointed for the meeting a quorum is not present the Chairman of the meeting shall ordinarily adjourn to some other date in the next week at the same time but place but a meeting called on requisition shall not be adjourned but dissolved. No quorum shall be necessary at the adjourned meeting.

(c)

No business other than the business fixed for the original meeting shall be transacted at any such adjourned meeting.

(iv)

Every meeting of the Board shall be presided over by the Chairman, or in his absence by a member elected from among the members present in the Meeting.

(v)

The Chairman shall be entitled to speak and vote on all questions at the meeting.

(vi)

The member presiding over the meeting in absence of the Chairman shall, for that meeting or during the period in which the presided over it, have all the powers of the Chairman,

(vii)

All questions which may come up before the Board at any meeting, shall be decided by the vote of majority of members present at the meeting and in every case of equality of votes the Chairman of the meeting shall have a second or casting vote.

(II)

Minutes book to be kept - (a) A minute book shall be kept by the Secretary of the Board or any other officer authorised by him. The proceedings of every meeting shall be entered therein and be signed by the Secretary and the Chairman. The minute book shall be permanently preserved. It shall be open to inspection at all reasonable hours by the Chairman/Secretary/Director of Marketing or any other officer duly authorised by the Board.

(b)

The copies, of the proceeding of every meeting shall be circulated among all members of the Board, Chairman, Market Committees and concerned officers for their information and follow up action.

Chapter - III

4.

Powers and Duties of the Officers and Servants of the Board.

- Subject to the provisions in the Act and resolutions passed by the Board from time to time the officers of the Board shall have the following powers and duties.

A-Chairman

(i)

The Chairman shall have the general control and overall supervisions over the affairs of the Board and its officers and staff. He shall preside over all the meetings of the Board. The Chairman shall also exercise such other powers and

perform such other duties as may be delegated to him by the Board from time to time.

(ii)

The Chairman shall be competent to take decision on any urgent matters on behalf of the Board. Such matter shall be placed in the next Board meeting for confirmation.

(iii)

Authority to grant casual leave to the Secretary.

B-Secretary

(i)

The Secretary shall be the Chief Executive Officer of the Board. All others officers and servants of the Board shall be subject to the immediate control of the Secretary. The Secretary shall be responsible for directing their work in such a manner as to ensure proper and efficient working of the Board.

(ii)

All appointments against the sanctioned posts shall be made by the Secretary subject to the approval of the Chairman. The Secretary shall be the authority to supervise the work of the officers and staff of the Board and to take disciplinary action against any of them for their neglect, misconduct etc. with the approval of Chairman.

(iii)

He shall convene the meetings of the Board.

(iv)

He shall be responsible for implementation of the policies and programmes laid down by the Board from time to time.

(v)

He shall be the officer to sue or be sued on behalf of the Board. All bonds and other legal documents executed in favour of the Board shall be in the name of Secretary by designation.

(vi)

He shall have the power to operate bank accounts individually or jointly with any other officers, authorised for the purpose subject to such limits as may be laid down by the Board from time to time.

(vii)

To sanction expenditure above rupees five thousand at time.

(viii)

To sanction purchase of vehicle/machineries and others, required for the Board within the budgetary limit subject to the approval of the Chairman.

(ix)

He shall exercise superintendence and control over the working of the R.M.C.s In the State.

(x)

He shall visit, inspect and enquire into the affairs of the R.M.Cs. He shall direct the Market Committee to do a thing or to desist from doing a thing which he considers necessary in the interest of the Committee.

(xi)

Authority to select the site for Markets subject to the approval of the Board.

(xii)

To grant casual leave to the Administrative Officer and earned leave to all officers and staff of the Board.

(xiii)

To perform such other functions as may be delegated or conferred by the Chairman/Board.

(xiv)

Arrange for internal audit of the Board.

(xv)

In the absence of the Secretary, the Administrative Officer of the Board shall perform the functions of the Secretary.

C. Administrative Officer

(i)

Next to Secretary there shall be an Administrative Officer in the rank of Class-I, who shall be appointed subject to the approval of the Board.

(ii)

All orders of the Chairman shall be directly carried out by the Administrative Officer and issued under his signature.

(iii)

The Administrative Officer shall - (a) be the custodian of all properties of the Board and look to the day-to-day administration.

(b)

distribute the duties among the subordinate officers and staff working in different Cells of the Board and supervise their day-to-day work.

(c)

be responsible for proper functioning of each Cell under the Board and initiate/take disciplinary action against any staff of the Board for their neglect, misconduct etc. subject to the approval of the Secretary/Chairman/Board, as the case may be. He can directly take action against the IV grade employees and below in case of their negligence in duty, misconduct etc. except suspending and removing.

(d)

be responsible for timely submission of reports and returns to different quarters and proper maintenance of accounts and registers in the Board.

(e)

make disbursements/obtain vouchers and receive payments for and on he half of the Board.

(f)

prepare annual budget of the Board for consideration in the Board meeting.

(g)

prepare and place the annual income and expenditure statement/ balance sheet/annual administrative report etc. before the Board meeting for consideration and to take follow up action thereupon.

(h)

incur expenditure on sanctioned items up to a limit fixed by the Board from time to time.

(i)

arrange for convening and holding of the meeting of the Board and maintain record of proceeding of the meeting of the Board in such manner as prescribed in the Regulations.

(j)

take such steps as may be deemed necessary for execution of decisions of the Board.

(k)

visit, inspect and enquire into the affairs of the R.M.C. and initiate action in case of lapses.

(l)

have the power to approve the plan and estimates for construction and repairing work of the R.M.C. not exceeding Rs. 5,000/- and to do the same in respect of such works of a value exceeding that amount, with the approval of the Chairman.

(m)

inspect construction work undertaken by the Market Committee and report omission in such construction work to the Secretary/Board and take all corrective measures. It shall be his duty to bring to the notice of the Market Committee concerned, any shortcoming and defective arrangements whenever noticed for immediate rectification,

(n)

arrange realisation of contribution and other dues from the Market Committees.

(o)

draw, accept, endorse and negotiate bills of exchange and on behalf of the Board jointly with the Secretary or as may be duly authorised by the Board from time to time.

(p)

be competent to keep cash under the safe custody and issue receipts on behalf of the Board. He shall also be competent to prescribe the maximum limit of cash that can be kept in the chest subject to the approval of the Secretary.

(q)

be competent to grant casual leave to his subordinate Officers and servants of the Board.

(r)

have control and supervision over all office vehicles.

(s)

to do such other things and perform such other acts as may be entrusted or delegated by the Secretary/Chairman.

(iv)

The Administrative Officer may delegate any of his power to any of the officer of the Board subject to the approval of Secretary. In the absence of the Administrative Officer, the Secretary may authorise any officer of the Board to perform such functions as are necessary.

D. Establishment Cell : For proper functioning of the Board shall be different cells.

The Establishment Cell shall be headed by one Establishment Officer who shall be assisted by such staff as may be decided by the Board from time to time. The said cell shall look after the following items of work :

(i)

Arrange for appointment and posting of staff, maintenance of their service book, regular and timely attendance of staff/maintenance of Muster Roll in case of daily-wage-earners etc.

(ii)

Proper maintenance of Leave account Register, Cash Book, T.A. bill Register, Pay acquittance Register, Dead stock furnitures Registers, General ledger and other necessary registers required for the Cell.

(iii)

To make necessary seating arrangements for the officers and staff of the Board.

(iv)

Arrange for purchase of Dead Stock furnitures, contingencies and other materials required for the Board and look to the proper utilisation.

(v)

Maintenance of Log Books of the Office vehicles.

(vi)

Make necessary disbursement/Payment to staff and other after the same is passed for by the Authority concerned.

(vii)

Make necessary arrangements to keep all stock and stores etc. under safe custody.

(viii)

Responsible for timely preparation and submission of necessary reports and returns including correspondence etc., relating to the Cell.

(ix)

To perform such other duties as made entrusted from time to time.

(x)

Ensure that the letter received, are timely diarised and distributed among concerned cells, so also, the cell will ensure timely typing and issue of letters.

E. Marketing Cell: The Marketing Officer shall remain in over all charge of the Cell. He shall be responsible for following items of work:

(i)

Timely submission of required reports and returns and review proceedings to, different quarters.

(ii)

Preparation of project proposals in respect of markets and Primarily Rural Markets for submission to Government of India for sanction of Central Assistance and passing of the same to the implementing agencies.

(iii)

Look to the proper and timely utilisation of Central assistance and submission of utilisation certificate to Government of India.

(iv)

Conduct market survey for establishment of new R.M.Cs. in the State/collect disseminate Market intelligence.

(v)

Preparation of State Master Plan for markets.

(vi)

Organisation of National seminal/workshop and conference.

(vii)

For maintenance of required registers in the Cell.

(viii)

Attending to the correspondence work relating to Act, Rules and Bye-laws;

(ix)

Attending to the corresponding work relating to grant of State subsidy to the Market Committees and Marketing Board.

(x)

Attending to the correspondence work relating grading of Agricultural Produce/N.S. Godowns and notifications for Market areas, Market yards, lists of commodities etc.

(xi)

Attending to the correspondence work relating to visit, inspection and enquiry.

(xii)

Budget of the Market Committees.

(xiii)

Any other matters as may be entrusted from time to time.

F. Engineering Cell. The Engineering Cell shall be solely responsible for timely execution of all construction works in the R.M.C financed either out of Government grant of loans or Committees' own funds. The Board shall be entitled to get the supervision charges from the concerned Market Committee at the rate of 10% of the work value.

The whole State shall be divided into three zones or more depending upon the aggregate work load of the R.M.Cs and each zone shall be headed by one Assistant Engineer. The Assistant Engineer in charge of each zone shall be assisted, by the required number of Junior Engineers and Work-Sarkars.

All works of the R.M.Cs shall be executed under the supervision of the Engineering Cell of the Board.

Functions Of Junior Engineers :

(i)

The Junior Engineers in charge of the Market Committee shall prepare Plan and Estimates on the requisitions, received from the R.M.C. after proper survey of the site on which the construction is proposed to be taken up. A register for the purpose shall be maintained at J.E. level which show the name of the R.M.C. from which requisition had been received, the date of receipt of requisition, list of items of construction, date of completion of preparation of Plan and Estimates and handing over the same to the R.M.C. and estimated amount in each case etc. After estimate is handed over intimation thereof shall be given by the Assistant Engineer concerned to the Administrative Officer

(ii)

All the estimates shall be prepared in accordance with the latest sanctioned scheduled of rates. All changes in the sanctioned rates during the currency of the year shall be sanctioned by the Board before their adoption. In support of sanitary projects the schedule of rates of Public Health Engineering Department shall be adopted.

(iii)

The Junior Engineer concerned, shall supervise the execution of work for the Plans and Estimates approved earlier, either through the Contractors or departmental labourers and ensure that the same are executed according to the approved Plan and Estimates. He shall give a Certificate of due execution for each work before final payment is made and also that the materials used therein are as per specifications in the estimates.

(iv)

The Junior Engineer shall check all the materials before use and satisfy himself on the standard of materials so collected. Any substandard materials, if found, shall be outright rejected by the Junior Engineer and a report thereon shall be given to the concerned Contractor/R.M.C. for immediate compliance with a copy to Administrative Officer.

(v)

The Junior Engineer shall be responsible for maintenance of a Register on the progress of construction of each item of work Market Committee wise. The said register shall remain open for inspection by the authority of the Board as and when required.

(vi)

He shall take measurement of all works executed under his supervision and assist the Assistant Engineer in doing check measurement.

(vii)

To prepare running bill of all works in progress and final bill for submission to the Assistant Engineer along with measurement books.

(viii)

To ensure proper maintenance of muster roll in cases where the construction is taken up departmentally and for timely payment of their wages by the R.M.C.

(ix)

Responsible for maintenance of a site book for each item of work and he shall record his findings in the site book. He shall see that the defects pointed to in the site book are properly rectified by the construction staff in time.

(x)

He shall prepare the tender paper and attend to the work starting from receipt of tender paper to finalisation of tenders.

(xi)

He shall prepare his tour programme for every month and send copies to the Administrative Officer as well as the Market Committee proposed to be visited sufficiently ahead of the visit.

(xii)

A work done report for each R.M.C. visited during the month, shall be prepared in nutshell and recorded in a register for verification by his Authority as and when required.

(xiii)

On the 1st working day of each month there shall be staff meeting in the Board Office in which all the field staff and indoor staff shall attend. They shall come prepared with all required information and register for detailed discussion in the staff meeting. A minutes of discussion shall be recorded and copies thereof shall be sent to all concerned.

(xiv)

A register showing daily consumption of materials issued to the contractor shall be maintained at the site by the Work Sarker which shall be duly checked by the junior Engineer/Assistant Engineer during his spot visit.

(xv)

Any other matters as and when entrusted for the greater interest of the work.

Functions of Assistant Engineer

(i)

The Assistant Engineer in charge of each zone shall ensure that the staff working under him are deployed suitably keeping in view the best interest of planning progress and economical execution of the works.

(ii)

Check and ensure timely approval of plan and estimates and return of same to the implementing agencies. A register is to be maintained showing the details of plan and estimates received, name of R.M.C. date of receipts, date of approval and date of onward transmission of the same to the implementing agencies etc.

(iii)

To ensure that the constructions taken up by the R.M.C. are in accordance with the sanctioned estimates, specifications, drawings and financial provisions.

(iv)

To check the functions, personally in case of important builders, bridges and culverts etc., to ensure the soundness and to record the measurements thereof and also to check and record the measurement of all other underground items of works before the same are concealed.

(v)

To take measurements of all important items of works such as foundations and steel reinforcement and to check measure all works, measurements which are recorded by the J.Es.

(vi)

To keep a vigilant control over the expenditure and report progress of work to the Administrative Officer of the Board every month.

(vii)

To check the Muster rolls maintained in the R.M.C. and in case of work departmentally taken up, and see that the engagement of labourers is within the sanctioned provisions.

(viii)

While doing check measurements the A.E. in charge of the Zone shall have to check measure at least 25% on account bills, 50% on final bills up to Rs. 10,000/- (ten thousand) and 100 per cent on the final bills above Rs. 10,000/- (ten thousand).

(ix)

In cases where the measurement of certain portions of work cannot be check-measured when the work has advanced beyond a certain stage, the check measurement shall be made sufficiently early.

(x)

In exceptional cases in which check measurement has been rendered impossible, the reasons why the check measurement was not made in time shall be entered in the measurement book.-

(xi)

Materials, collected on the road side, shall ordinarily be check-measured after the whole collection on a well defined stretch of the road is completed to avoid any opportunity for frauds. In the event of collection being incomplete and the materials collected being required urgently for the road, further collection shall be suspended and the materials so far collected shall be check-measured and ordered to be spread. After the spreading is completed and check measured and the balance of materials at site recorded and check-measured, further collection may be proceeded with, and substandard materials if found shall be outright rejected.

(xii)

During the tour the A.E. shall ensure proper maintenance of building register in the R.M.Cs. and report to the A.O. in case of lapse.

(Xiii)

Any other matters as and when entrusted.

G. Publicity Cell - The Publicity Cell shall be headed by an Assistant Publicity Officer who shall perform the following duties -

(i)

responsible to hold meeting, undertake publicity and propaganda on Market regulation scheme in the market area of different R.M.Cs to educate farmers and others.

(ii)

to distribute leaflets, pamphlet, wall posters on the Scheme among all market-users through the R.M.Cs.

(iii)

make arrangement for wide publicity through news papers, radio and T.V. on the activities of the R.M.Cs.

(iv)

to arrange and organise seminars and exhibitions in the State on agriculture marketing.

(v)

to arrange and publish annual administrative report/balance sheet and statement of assets and liabilities.

(vi)

to prepare budget of the Board for the ensuing year.

(vii)

to arrange for the training of officers and servants of the Market Committees.

(viii)

to take up quarterly review on the income and expenditure, arrival of agriculture produce, establishment of market years, staff position etc. of the R.M.Cs. in the State and arrange to issue proceedings thereof to the concerned quarters.

(ix)

look to the proper maintenance of arrival register of major commodities in respect of each market area.

(x)

look to the issue of meeting notice, preparation of agenda notes and records of proceedings of the Board meeting.

(xi)

see for the purchase of books and periodicals on Agril, Marketing. Act and Rules of different States, Act and Rules of Grama Panchayat, Municipality etc., Regulations of different States Marketing Boards and other books and journals relating to Agril, Marketing for the library of the State Marketing Board.

(xii)

Attend to the correspondence of utilisation of Godowns of the R.M.Cs.

(xiii)

Any other matters as and when to be entrusted.

(H)

Audit Cell: The Audit Cell created in the Board, shall look to the following items of work. The Audit Superintendent shall remain in over all in charge of the Cell and he is responsible for proper discharge of duties by the Audit staff ;

(i)

The Audit Superintendent is to mobilise the audit staff subject to the approval of the A.O. of the Board in such a manner as to ensure up to date audit of accounts of the R.M.Cs. in the State.

(ii)

The Board shall be entitled to get fees from the Market Committees as per the rate prescribed by the competent authority.

(iii)

Audit shall be undertaken as per the guidelines to be formulated for the purpose.

(iv)

To carry out the auditing the auditors shall have access to all relevant records of the R.M.C.

The Administrative Officer of the Board shall make an annual assessment of the work of each Cell and in cases where he feels necessary, he may suggest proposals for creation of any senior or junior grade officers and staff in any cell for consideration of the Secretary, Chairman and Board.

Chapter-IV

5.

Salaries and Allowances and other Conditions of Service of Officers and Servants of the Board.

- The scale of pay and other allowances of the officers and servants of different cadres of the Board shall be such as may be decided by the Board from time to time.

6.

Filling of the posts.

- (i) The modes of filling of the posts shall be -

(a)

By direct recruitment, or

(b)

By promotion from the lower cadre, or

(c)

By absorption or deputation from Government or Market Committee or any other Organisation.

(ii)

In case of direct recruitment the educational qualification, experience and age limit shall be fixed by a Board from time to time.

(iii)

The mode of recruitment by promotion shall be such as may be laid down by the Board subject to the following criteria :

(a)

All promotions shall be made on the basis of seniority-cum-merit.

(b)

In making an appointment to any post by promotion, the appointing authority may supersede an employee who is apparently not fit to discharge the duties and responsibilities of the post and whose appointment is likely to affect adversely the efficiency of work assigned to the post.

7.

Service Conditions.

- (A) Age Limit - The age limit for entry in to Board service in case of direct recruits shall be the same as in the case of Government employees.

(B)

The Board shall be competent to relax any of the conditions regarding eligibility for appointment in suitable cases.

(C)

Opening and Maintenance of Service Book-

(i)

A service book shall be opened and maintained in such form as prescribed by the State Government of Orissa for their employees for every officer or servant of the Board. The service book will be a record of the service and shall contain no

remarks on work and conduct.

(ii)

The Administrative Officer shall be responsible for the correct and up to date maintenance of the service book of each employee of the Board. He shall record annual certificate of verification in the service book relating to the office establishment as early as possible after the end of every year.

Note. - The above provisions shall not apply to the employees on deputation.

(iii)

The service book shall be maintained in duplicate. Duplicate copy of the same duly filled in and signed by the Authority concerned shall be made available to the employees concerned by the end of each year.

(D)

In addition to the service book, a character roll shall be maintained in the form prescribed by the State Government for their employee for each employee of the Board. Adverse remarks against an employee shall be communicated to the concerned employee within three months of the date of entry of the adverse remark by the Accepting Authority.

All the character rolls, after recording, shall be forwarded to the Secretary, Board who shall record his own comments with his signature and the Chairman shall be accepting authority in respect of the C.C.R, of the Secretary and the Administrative Officer of the Board. The Administrative Officer of the Board shall be the custodian of all CCRS.

(E)

Termination, Resignation and Discharge - (i) During the period of service if any employee is found unsuitable and his work proves to be quite unsatisfactory he may be terminated from service after giving him one month notice or notice pay subject to the approval of the Board.

(ii)

In case of an employee intending to resign from service he may do so giving one month notice or one month pay and allowance to the authority.

(iii)

A resignation shall be effective from the date it is accepted. It shall be open to an employee to withdraw his resignation before it is accepted.

(F)

Age of Superannuation - The age of superannuation of an employee of the Board shall be the last date of the month in which he attains the age of 58 years except for the employees of the grade and Driver in whose case the same shall be 60 years.

(G)

Extension of Service - (a) No employee shall be retained or re-employed in service beyond the date of superannuation without specific extension or re-employment granted by the Board. Extensions or re-employment so granted shall be for a period one year at a time.

Note - The service of an employee who is granted extensions shall be treated as continuous for all purpose of service.

(b)

A retired employee of another Organisation may also be employed to the Board service on such terms and conditions as the Board may decide in each specific case.

(H)

T.A. & LEAVE - The T.A./D.A., leave, salary and other allowances of the Board employees shall be such as the Board may decide from time to time. Non-official members of the Board attending a meeting of the Board shall be entitled to a sitting fees of Rs. 100/per each sitting along with the 1st Class T.A. and from their places of residence and the venue of the meeting and D.A. @ Rs. 50/- per diem.

(L)

Working Hours - The Office of the Board shall remain open during such hours as those during which State Government offices remain open.

(J)

Holidays - The holidays to be observed by the office of the Board shall be the same as those declared by the State Government of Orissa.

(K)

Subsistence Allowance - An employee under suspension shall be entitled to subsistence allowance at such rates as are

applicable to the employees of the State Government.

(L)

Charge Allowance - (i) An employee required to hold charge of the current duties of one or more independent posts at one time, shall, while holding charges, be granted by the competent authority special pay at the rate of 1/10th of the pay of such other person which he would have drawn on regular appointment in that post for which additional charge thereof, is held by him for periods not less than thirty days excluding Sundays, weekly off and public holidays, if any, allowed to be prefixed/suffixed or both, to leave or joining time to be enjoyed by the employee holding such second post.

(ii)

The above arrangement may be continued for a period not, exceeding 12 months. The Board may for sufficient reasons grant special pay beyond 12 months under exceptional circumstances.

(M)

Other Allowances (Like D.A..H.R.A. Medical reimbursements etc..) Other allowances for the Board employees shall be the same as availed of by the State Government, employees.

(N)

Bonus - Every employee of the Board shall be entitled to bonus on the lines of State Govt, employees that may be declared from time to time.

(O)

(i)

Conduct, Discipline and Appeal - (i) Government Servants Conduct Rules, 1959 shall apply mutatis mutandis to the employees of the Board and the Board or such other authority may, be declared by the Board, shall be competent authority for purposes thereunder.

(ii)

An employee who is habitually late in attendance be liable to penalty as the Secretary or any other authority to whom he is subordinate may deem fit to impose, or shall, at the discretion of the Secretary or any other authority to whom he is subordinate, have one day of his casual leave forfeited for every three days he is late in the month and where such an employee has no casual leave, leave to be forfeited may be such other leave as the Secretary may determine.

(II)

Suspension - The appointing authority or any authority to which it is subordinate and empowered by the Board in that behalf may place an employee under suspension.

(a)

Where a disciplinary proceedings against him is contemplated or is pending, or

(b)

Where a case against him in respect of any criminal offence involving moral turpitude is under investigation, inquiry or trial :

Provided that where the order or suspension is made by a Authority subordinate to or lower in rank than the Appointing Authority, such Authority shall forthwith report to the Appointing Authority the circumstances in which the order was made.

(c)

An order of suspension made under this Rule shall continue or remain in force until it is modified or revoked by the Authority competent to do so.

(d)

An order of suspension made under this regulation may at any time be modified or revoked by the Authority which made it or is deemed to have made it or by any Authority to which that Authority is subordinate.

(III)

Penalties - Without prejudice to any action under the provisions of any other regulations, any employee who commits wilful breach of a regulation, or of any of his duties or displays dishonesty, negligence, inefficient, insubordination, rudeness or who knowingly, wilfully or negligently omit to do anything or does anything detrimental to the interest of the Board, or in conflict with its instructions or who commits a breach of discipline or is guilty of disobedience or of any other act of misconduct or misbehaviour shall be liable to any of the following penalties.

(i)

Minor Penalties-

(a)

Censure

(b)

Withholding of increment or promotion

(c)

Recovery from his pay of the whole or part of any pecuniary loss caused to Board by negligence or breach of orders.

(ii)

Major Penalties -

(d)

Reduction to a lower stage in the time scale of pay for a specific period, with further directions as to whether or not the Board employee will earn increment of pay during the period of such reductions or will or will not have the effect of postponing the further increments.

(e)

Compulsory retirement.

(f)

Removal from service which shall not be a disqualification for further employment under the Board.

(g)

Dismissed from service which shall ordinarily be a disqualification for further employment under the Board,

(iii)

No penalty shall be imposed on any employee without making a fair and proper enquiry in this behalf and unless the appointing authority or such other authority empowered in this behalf is satisfied that the charges leading to the penalty were proved, in holding enquiry the procedure as laid down in O.C.S. (C.C.A.) Rules, 1962 shall be followed.

(iv)

Disciplinary Authority - The Secretary of the Board may impose any of the penalties specified above on any employee subject to the approval of the Board.

(v)

Appeal - An employee shall have right of appeal to the Chairman, Board against an order which injuriously effects his interests.

9.

Operation of Bank Account.

- The following officers shall have the powers to operate the Bank Accounts of the Board.

(1)

Secretary

(2)

Administrative officer

(3)

Accounts officer/Accountant

The cheques upto Rs. 50,000/- shall bear the signature of the Secretary and Administrative Officer or Accountant in absence of the Accounts Officer and the Administrative Officer.

The Administrative Officer and the Accountant shall be the joint custodian of the cash under double lock subject to any change of arrangement that may be made by the Secretary.

All bonds and other documents of the Board shall be executed by the Secretary and two other members of the Board.

Chapter-V

10.

Establishment and administration of State Agricultural Marketing Development Fund.

- (i) There shall be established a Fund to be called the State Agricultural Marketing Development Fund shall be maintained and administered by the Board.

(ii)

The following shall form part of or the paid into the Development Fund namely :

(a)

All contributions received by the Board from the Market Committees under the Act.

(b)

All contributions and grants made or sanctioned to the Board by the State Government.

(c)

Any sums borrowed by the Board.

(d)

All incomes or money received by the Board from any source whatsoever including income or charges fees levied by it or donations or grants received from the local Authorities. Market Committees or other institutions and individuals

(e)

Amount recovered as an arrear of land revenue under the Act.

(f)

Such other sums as the State Govt, may from time to time specify.

(iii)

The State Govt, may every year make payment to the Board by way of contribution or grants of such amounts as the Government may deem proper.

(iv)

All expenditure incurred by the Board shall from time to time be defrayed out of the Development Fund and surplus, if any, shall be invested by the Board in Public Securities or shall be deposited in any Scheduled Bank or in a Co-operative Bank approved by the Board for the purpose.

(v)

Subject to the provisions of the Act, the Marketing Development Fund shall be utilised by the Board for the following purposes, namely;

(a)

Maintenance of staff, payment of their salaries and other allowances etc.

(b)

Travelling and other allowances to the members of the Board

(c)

Propaganda and publicity

(d)

Legal expenses

(e)

Imparting education on Agril. Marketing

(f)

Training of officers and staff and members of the Market Committee and Agriculturists and Trader etc.,

(g)

Workshop/seminars/exhibitions on development of Agri. Marketing.

(h)

Giving aid to the financially weak Market Committee in the form of grants and loans.

(i)

Acquisition/construction of buildings for performing the duties of the Board.

(j)

General improvements of the regulation of Agricultural Marketing in the State.

(k)

Grading and standardisation of Agricultural Produce;

(l)

For any other purpose deemed necessary for the execution of the functions assigned to the Board.

11.

Audit of Account of the Board.

- (i) The accounts of the Board shall be audited by such auditors as may be appointed by the Board subject to the provisions of the Act and the Rules.

(ii)

The Board shall make necessary arrangements for internal audit of its accounts as it may deem fit.

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